

Court No. - 32

Case :- WRIT - C No. - 24449 of 2018

Petitioner :- Mohd. Jubair

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Sanjay Kumar

Shukla, Ram Sajiwan Mishra

**Counsel for Respondent :- C.S.C., Kapil Dev
Singh Rathore**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Rajiv Gupta,J.

This writ petition has been filed, inter alia for the following reliefs:-

(i) Issue a writ, order or direction in the nature of certiorari quashing the order dated 12.04.2018 passed by the respondent no. 3 (Annexure No. 8 to the writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus commanding/directing the respondents to connect/restore the Electricity connection of the petitioner being connection no. 6705/303971 being Meter No. TN-147356 situated in House No. 97A, Aijaj Nagar, Gautiya, Bareilly, District Bareilly.

Heard learned counsel for the petitioner, Sri Kapil Dev Singh Rathore, learned counsel for the Electricity Department and perused the record.

Perusal of the record reveals that during the course of inspection, the petitioner was found

committing theft of electricity, as such, the first information report dated 24.10.2017 was lodged against the petitioner under Section 135 Electricity Act, Police station Bardari, District Bareilly. Thereafter, the provisional assessment order against the petitioner was made by the Electricity Department and the petitioner was directed to file his objection, if any, to the provisional assessment order within 15 days but no specific date was fixed by the Electricity Department to enable the petitioner to appear in person before the authority concerned. It may also be noted that the petitioner has made a request by way of filing an application dated 20.03.2018 to the concerned authority for restoring the electricity supply of his premises but the said application of the petitioner has been rejected on 12.04.2018 by the authority concerned stating that an F.I.R. under Section 135 of Electricity Act has been lodged by the Electricity Department against the petitioner, as such, without the deposit of penalty and other outstanding dues, the electricity connection can not be restored.

Learned counsel for the Electricity Department in

this regard has referred to Section 8.1(viii) & 8.2(viii) of the Uttar Pradesh Electricity Supply Code, 2005. For ready reference, the aforesaid sections are quoted herein below:-

8.1(viii). In cases where the theft of electricity is detected by by-passing the meter or metering equipment and the electrical load, fully or partially, of the person's connection is found connected directly with the lines, cables or electrical plant, electric supply to such premises shall be disconnected forthwith on the spot by the licensee and shall be restored only after the cause of theft is removed to the satisfaction of licensee and the person pays the charges raised as per assessment bill, with due opportunity to him for making representation etc. as per the procedure prescribed for the same in the Code.

8.2(viii). The supply shall be restored if the Consumer pays the charges demanded (compounding charges / assessment charges if any) and complies with the directions by the Licensee.

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Perusal of the aforesaid provisions of code clearly indicates that if the theft of electricity is detected by by-passing the meter or metering equipment and the electrical load, fully or partially, of the person's connection is found connected directly with the lines, cables or electrical plant, electric supply to such premises shall be disconnected forthwith on the spot by the licensee and shall be restored only after the cause of theft is removed to the satisfaction of licensee and the person pays the charges raised as per assessment bill, with due opportunity to him for making representation etc. as per the procedure prescribed for the same in the Code.

In view of the above, the respondent no. 3 was fully justified in not restoring the electricity connection before the deposit of the electricity dues and others charges as provided under the aforesaid sections of U.P. Electricity Supply Code, 2005.

Perusal of the record further reveals that the petitioner has also filed his objection to the

provisional assessment made by the Electricity Department but the same has not yet been decided by the concerned department.

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Learned counsel for the Electricity Department has stated that in case the petitioner appears personally before the authority concerned along with his objection to the provisional assessment, the authority concerned will pass the final assessment order after considering the objection to the provisional assessment filed by the petitioner.

In view of the above, the petitioner is directed to appear before the respondent no. 3 personally along with his objection to the provisional assessment. In case, such objection is filed by the petitioner before the respondent no. 3 within 15 days from today, the said authority shall pass the final assessment order after considering the objection to the provisional assessment as well as the evidence, if any, filed by the petitioner.

It is made clear that no coercive action shall be taken against the petitioner, until the final

assessment order is passed by the authority concerned.

With the aforesaid observation, this writ petitioner is finally disposed of.

Order Date :- 24.7.2018
Arun